

## 8.5 LANDSCAPE CONSERVATION AREAS

Where a place or object is included in the National Heritage List, development and building approval will be required for major work under the Environmental Planning and Assessment Act 1979 (EP&A Act). Waverley Council is the consent authority, however referral to the Australian Heritage Council under the Environmental Protection and Biodiversity Act 2012 is required if the proposal is likely to negatively impact on the National Heritage values.

### Objective

- (a) Retain all aspects of Landscape Conservation Areas that contribute to the identified heritage significance of the area.

### Controls

- (a) New works in the vicinity of Landscape Conservation Areas and natural settings are to acknowledge the significant character, detail and context of the setting.
- (b) Any new works must consider the visual and physical impact upon the setting.
- (c) Any new work should avoid the removal of fabric whether plant material, manmade feature or natural formation and any works likely to cause long or short term impact upon the setting e.g. change in ground water flow, reflected light, illumination of natural planting and stability of natural or manmade features.
- (d) The removal of significant public domain features will only be considered if their retention in situ is not feasible and has been demonstrated in a Heritage Impact Statement.
- (e) If significant public domain features are to be removed, they are to be replaced in one of the following ways:
  - (i) Detailed and made of materials to match the period and character of the street or park in which they are located; or
  - (ii) A contemporary interpretation of traditional elements.